

judgment in favor of plaintiff. *FPI Development* reminds the Court of the purpose, historically, of demurring to an answer: A plaintiff moving for summary judgment had to disprove defendant's affirmative defenses, so plaintiff made sure, by way of demurrer, that those affirmative defenses were pled in very fact-specific allegations. The summary judgment statute, however, was amended in 1992, eliminating this requirement. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 565.) Now that the defendant, and not the plaintiff, has the burden on summary judgment with regard to defendant's affirmative defenses, a demurrer to an answer no longer accomplishes anything.

Here, Plaintiff asserts that certain of the subject affirmative defenses fail to state sufficient facts, are uncertain, improper or invalid in this SBA action. It is accurate that the subject affirmative defenses themselves are conclusory but, so are the allegations in the Complaint. Plaintiff takes issue with the lack of facts that are alleged but, a demurrer only addresses the face of the pleading. Whether there are alleged facts or not, the merits of the affirmative defenses are not before the court on this motion.

More importantly, a pleading need only give fair notice of the issues involved. (Weil & Brown, *supra.* at § 6:128, citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376.) Here, Defendant's Answer gives Plaintiff fair notice of the affirmative defenses asserted. If Plaintiff wants further clarification of the affirmative defenses, she can propound Form Interrogatory No. 15.1, which would require Defendant to state all facts upon which it bases its affirmative defenses. Thus, the challenged affirmative defenses (AD) are sufficiently alleged for purposes of surviving a demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2201046	BROWN VS RIVERSIDE COUNTY SHERIFF	MOTION TO COMPEL ATTENDANCE AT DEPOSITION OF PLAINTIFF MAYLETTE BROWN

Tentative Ruling: Unopposed motion to compel Attendance of Plaintiff Maylette Brown at deposition and to produce documents is Granted. Plaintiff is ordered to appear for deposition within 10 days of the date of this order and produce documents 5 days prior to the date of the deposition. Sanctions awarded to moving party in the amount of \$2,961.00.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2201046	BROWN VS RIVERSIDE COUNTY SHERIFF	MOTION TO COMPEL ATTENDANCE AT DEPOSITION OF PLAINTIFF JASMAINE GRABEN

Tentative Ruling: Unopposed motion to compel Attendance of Plaintiff Jasmine Graben at deposition and to produce documents is Granted. Plaintiff is ordered to appear for deposition within 10 days of the date of this order and produce documents 5 days prior to the date of the deposition. Sanctions awarded to moving party in the amount of \$2,461.00.